

Franciscus Dylan Rosario,
7624 Melody,
Rohnert Park, CA 94928,
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

[PROPOSED] ORDER

DENYING VEXATIOUS MOTION

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7 as applicable to the relief opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court's authority to consider the substance is under Code of Civil Procedure sections 391
2 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

3 5. This paper is timely filed for the August 26, 2026 hearing under Code of Civil Procedure
4 section 1005, subdivision (b), and California Rules of Court, rule 3.1300.

5 Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

6 The Motion of Defendant CSAA Insurance Exchange to Declare Plaintiff a Vexatious Litigant and
7 to Require Security came on regularly for hearing on August 26, 2026, at 9:00 a.m. in Department
8 302 of the above-entitled Court. Plaintiff Franciscus Dylan Rosario appeared in propria persona.
9 Defendant appeared by counsel of record.

10 The Court, having considered the moving papers, opposition papers, reply papers (if any), Request
11 for Judicial Notice and objections thereto, evidentiary objections, and argument of the parties, and
12 good cause appearing, hereby finds and orders as follows:

13 **FINDING:** Lodging statutes, requests for judicial notice, and notices of controlling or adverse
14 authority for record-building and evidence-practice purposes is not, without more, a basis for des-
15 ignation under Code of Civil Procedure section 391(b)(2) or (b)(3). (*Morton v. Wagner* (2007) 156
16 Cal.App.4th 963, 971-972.)

17 1. Defendant's Motion to Declare Plaintiff a Vexatious Litigant under Code of Civil Procedure
18 section 391(b), including subdivisions (b)(2) and (b)(3), is **DENIED**.

19 2. Defendant's request for an order requiring Plaintiff to furnish security under Code of Civil
20 Procedure section 391.3 is **DENIED**.

21 3. Defendant's [Proposed] Order seeking a blank-amount security in all pending actions in any
22 court in the State of California, concurrent security with any new California action, and pre-
23 service screening of filings in any action Plaintiff initiates, is **DENIED** in its entirety.

24 4. No prefiling order under Code of Civil Procedure section 391.7 is entered. Nothing in this
25 Order subjects Plaintiff to statewide bond, prefiling, or pre-service screening requirements.

26 5. Memorandum of Costs issues, if any, are reserved for determination on Plaintiff's separately
27 noticed Motion to Tax or Strike Costs under California Rules of Court, rule 3.1700(b), and
28 are not determined by this Order.

IT IS SO ORDERED.